

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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JHOEL BECKLES,

Plaintiff

- against -

THE CITY OF NEW YORK,
POLICE OFFICER ANDREW SCHULZ,
POLICE OFFICER STEPHEN GARNEAU,
and POLICE OFFICER RICARDO RICHARDS,

Defendants.

Index No. _____
Purchased _____
Plaintiff designates Queens
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
November 16, 2018



JEFFREY W. RIZZO, ESQ.
Attorney for Plaintiff
930 Grand Concourse, Suite 1E
Bronx, New York 10451
(718) 618-7509

Defendant's Address:
CORPORATION COUNSEL OF THE
CITY OF NEW YORK
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY****JHOEL BECKLES,****Plaintiff,****Index No.
Verified Complaint****- against -****THE CITY OF NEW YORK,
POLICE OFFICER ANDREW SCHULZ,
POLICE OFFICER STEPHEN GARNEAU,
and POLICE OFFICER RICARDO RICHARDS,****Defendants.**

Plaintiff, JHOEL BECKLES, by his attorney JEFFREY W. RIZZO, ESQ.,
principal, complaining of the Defendants, respectfully shows to this Court and alleges the
following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff ("MR. BECKLES") was a
resident of Queens County, City and State of New York.

2. At all times hereinafter mentioned, Defendant THE CITY OF NEW
YORK ("CITY") was and still is a municipal corporation organized and existing under
and by virtue of the laws of the State of New York.

3. At all times hereinafter mentioned, Defendant POLICE ANDREW
SCHULZ, (hereinafter SCHULZ), was and still is a Police Officer employed by the
Defendant CITY and the NEW YORK CITY POLICE DEPARTMENT ("NYPD").

4. On and prior to August 22, 2017, SCHULZ was employed by Defendant CITY and the NYPD and was assigned in the Borough and County of Queens, City and State of New York.

5. The actions of SCHULZ described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendants CITY and NYPD.

6. At all times hereinafter mentioned, Defendant STEPHEN GARNEAU, (hereinafter GARNEAU), was and still is a Police Officer employed by the Defendant CITY and the NEW YORK CITY POLICE DEPARTMENT ("NYPD").

7. On and prior to August 22, 2017, GARNEAU was employed by Defendant CITY and the NYPD and was assigned in the Borough and County of Queens, City and State of New York.

8. The actions of GARNEAU described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendants CITY and NYPD.

9. At all times hereinafter mentioned, Defendant RICARDO RICHARDS, (hereinafter RICHARDS), was and still is a Police Officer employed by the Defendant CITY and the NEW YORK CITY POLICE DEPARTMENT ("NYPD").

10. On and prior to August 22, 2017, RICHARDS was employed by Defendant CITY and the NYPD and was assigned in the Borough and County of Queens, City and State of New York.

11. The actions of RICHARDS described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendants CITY and NYPD.

BACKGROUND

12. On or about August 22, 2017, SCHULZ, GARNEAU, and RICHARDS, acting as agents, servants and employees of Defendant CITY and NYPD, without just cause or provocation, intentionally and falsely accused MR. BECKLES of having committed the crime of Assault in the Second Degree (P.L. § 120.05) and related charges.

13. On or about August 22, 2017, Defendants, their agents, servants and/or employees, intentionally placed MR. BECKLES under arrest without just cause or provocation and with reckless and negligent disregard for the truth.

14. On or about August 22, 2017, a criminal complaint was issued at the directive of Defendants, and a criminal action against MR. BECKLES was commenced.

15. On August 22, 2017, MR. BECKLES was arraigned in Criminal Court – County of Queens at which point bail was set and he transferred to New York City Department of Corrections custody.

16. MR. BECKLES was released after paying bail on or about August 23, 2017.

17. As a result of the treatment of MR. BECKLES by the Defendants, MR. BECKLES was denied liberty by being falsely arrested and imprisoned for approximately twenty-four (24) hours.

18. MR. BECKLES suffered emotional injuries due to the conduct of the Defendants. As a result of being falsely arrested and detained for twenty-four (24) hours, MR. BECKLES suffered humiliation, fear for his safety and other emotional distress.

PROCEDURAL POSTURE

19. On September 28, 2017, Plaintiff served a Notice of Claim in writing, sworn to on his behalf, upon Defendant CITY. The Notice of Claim advised the Defendant of the nature, place, time and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

20. More than thirty days have elapsed since service of said notice, and Defendant CITY has failed to pay or adjust the claim.

21. This action has been commenced within one year and ninety days after the cause of actions of Plaintiff accrued.

22. Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE ARREST

23. Paragraphs 1-22 are incorporated by reference as fully set forth herein.

24. On August 22, 2017 at approximately 1:30 a.m., in the vicinity of 31-49 98th Street in Queens County, Defendants SCHULZ, GARNEAU, and RICHARDS, along with other NYPD officers wrongfully touched, grabbed, handcuffed and seized MR. BECKLES, in an excessive manner about his person, causing MR. BECKLES physical pain and mental suffering. At no time did the Defendants have legal cause to

grab, handcuff, seize or touch Plaintiff. MR. BECKLES was aware of his arrest and confinement as described in paragraphs 1-22, and she did not consent to that arrest or confinement, nor was it privileged by law.

25. As a result of being falsely arrested by the Defendants, MR. BECKLES sustained multiple injuries. He was denied liberty and the ability to enjoy life for approximately twenty-four (24) hours. He also suffered emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

26. Paragraphs 1-25 are incorporated by reference as though fully set forth herein.

27. The Defendants, their agents, servants and employees, arrested and confined MR. BECKLES, as described in paragraphs 1-26, and intended to confine MR. BECKLES. MR. BECKLES was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

28. As a result of being falsely imprisoned by the Defendants, MR. BECKLES sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

THIRD CAUSE OF ACTION ASSAULT AND BATTERY

29. Paragraphs 1-28 are incorporated by reference as though fully set forth herein.

30. On August 22, 2017 at approximately 1:30 a.m., in the vicinity of 31-49 98th Street in Queens County, Defendant SCHULZ, GARNEAU, and RICHARDS, along with other New York City police officers, wrongfully touched, grabbed, pushed, punched, kicked, tripped, handcuffed, and seized MR. BECKLES, in an excessive manner about his person, causing MR. BECKLES physical pain and mental suffering.

31. That on or about August 22, 2017, and while in the custody of the defendants in the County of Queens, City of New York, the Plaintiff MR. BECKLES was intentionally touched, grabbed, pushed, punched, kicked, assaulted, violated, humiliated and handcuffed by SCHULZ, GARNEAU, and RICHARDS,, along with other New York City police officers who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

32. That on or about August 22, 2017, SCHULZ, GARNEAU, and RICHARDS,, along with other New York City police officers their agents, servants and employees, acting as agents and on behalf of the CITY and NYPD within the scope of their employment, did intentionally, willfully and maliciously assault and batter MR. BECKLES in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to MR. BECKLES and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner intentionally touched the plaintiff and/or made offensive bodily contact to MR. BECKLES and caused such battery in and about her chest, body and limbs. At no time did MR. BECKLES consent to the aforesaid assault and battery.

33. While not conceding that said arrest was lawful or made upon probable cause, the aforesaid intentional assault and battery during the arrest was excessive. The excessive force used, including but not limited to the pushing, shoving, grabbing of MR. BECKLES, was an assault and battery beyond that which was necessary to make the arrest.

34. That by reason of the aforesaid intentional assault and battery committed by the defendants, their agents, servants and employees, along with other New York City police officers acting within the scope of their employment and authority and without any probable or reasonable cause, MR. BECKLES suffered bodily injury in and about his face, head, body and limbs and suffered conscious pain and suffering, and that he was otherwise damaged.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, New York
November 16, 2018

Yours, etc.,



JEFFREY W. RIZZO, ESQ.
Attorney for Plaintiff
930 Grand Concourse, Suite 1E
Bronx, NY 10451
718-618-7509

VERIFICATION

Jeffrey W. Rizzo, affirms the following statements to be true under the penalties of perjury, pursuant to Rule 2016 of the CPLR:

I have read the foregoing SUMMONS AND VERIFIED COMPLAINT and know the contents thereof based upon a review of the file maintained in my office; that the same is true to my own knowledge except as to those matters therein stated to be alleged upon information and belief, and as to those matters, I believe them to be true.

I execute this Verification since I maintain my office in Bronx County and Plaintiff currently resides in Queens County.

Dated: Bronx, New York
November 16, 2018



JEFFREY W. RIZZO

CERTIFICATION

I, JEFFREY W. RIZZO, ESQ., certifies, that, to the best of my knowledge, information and belief, the presentation of the paper is not frivolous and, where the paper is an initiating pleading, that the matter was not obtained through illegal conduct or, if it was, that the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing fees and that the matter was not obtained in violation of DR 7-111. (22 N.Y.C.R.R. 130-1.1-a[b]).



JEFFREY W. RIZZO, ESQ.